

CONSOLIDATED ACTS OF SAMOA 2008

EDUCATION ORDINANCE 1959

Arrangement of Provisions

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THE EDUCATION ORDINANCE 1959

1959 No.14

AN ORDINANCE to make provision in regard to the education of the people of Samoa.

(21 September 1959)

(Commencement date: 01 October 1959)

PART I INTRODUCTION

1. Short title and commencement - (1) This Ordinance may be cited as the Education Ordinance 1959, and shall come into force on the 1st day of October 1959.

2. Interpretation - (1) In this Ordinance, unless the context otherwise requires:

"Controlling Authorities", in respect of any school, means the person or persons, whether incorporated or not, financially responsible for the establishment and maintenance, or for the maintenance of any school.

"Department" means the Education Department of Samoa.

"Chief Executive Officer" means the Chief Executive Officer of the Ministry of Education, Sports and Culture appointed and, in the Chief Executive Officers absence, the person lawfully directed to act in the place of the Chief Executive Officer;

"Government school" means a school staffed by teachers whose salaries are paid wholly from public funds and declared by the Minister to be a Government school for the purposes of this Ordinance;

"Head Teacher" in relation to a school, means the person who is the administrative head of the school, by whatever title that person is described, and whether or not that person is himself or herself engaged in teaching duties;

"Inspector" means a person appointed pursuant to section 6 to be an inspector of schools;

"Parent" in relation to any child, includes the child's guardian, any person who has the actual custody of the child, and the head of any family in whose house the child resides;

"Primary education" means any and all education for pupils between year one level and the end of year eight level, as the levels for those years are determined from time to time by the Minister;

"Primary school" means a school providing a course of primary education for pupils whether or not it provides for primary education to year eight level and whether or not it also provides any secondary education and also has the extended meaning required by subsection (2) of this section;

"Registered school" means a school registered under the provision of section 14;

"School age" in relation to any child means any age between the age of 5 years and 14 years or any age earlier than 14 of which the child ceases to be required to have his or her name enrolled on the registered of a school in accordance with Part III of this Ordinance;

"Special class" means a class in a school which is intended to provide tuition for children who for any reason require special attention or assistance in their education;

"Special school" means a school which specialises in the provision of education for children suffering from any physical or mental handicap;

"Prescribed" means prescribed by this Ordinance or by regulations made under this Ordinance.

(2) Where a school which except for this subsection would not be a primary school engages in any primary education, the primary classes conducted by that school shall be deemed for the purposes of this act to constitute a primary school.

(3) The Head Teacher of any school to which subsection (2) applies shall in the absence of evidence to the contrary be deemed to be the Head Teacher of that part of the school which by virtue of that subsection is deemed to be a primary school.

PART II ADMINISTRATION

3. Minister responsible for Education - (1) There shall be a Minister responsible for Education for Samoa whose function shall be to formulate and direct educational policy, and to exercise a general superintendence and control over education under this Ordinance, or any other Ordinance conferring powers on the Minister.

(2) The Minister may establish and maintain such Government schools in Samoa as the Minister deems necessary for the Samoan or other inhabitants thereof.

4. Constitution of department - There is hereby constituted and established a department of the Government of Samoa to be known as the Education Department which, under the control of the Minister and subject to this Ordinance, shall be charged with the administration of this Ordinance and with such functions as may from time to time be lawfully conferred on it.

5. Principal functions of the department - The principal functions of the department shall be to promote and encourage the development and improvement of all phases of education in Samoa, and generally to administer this Ordinance and any other enactment relating to any matter which may be lawfully entrusted to it.

6. Chief Executive Officer of Education - (1) There shall from time to time be appointed an officer of the Public Service to be called the Chief Executive Officer of Education, who shall be the Administrative Head of the Education Department.

(2) There may likewise from time to time be appointed under the Public Service Act 1977 such inspectors, teachers, officers, and other employees of the department as may be necessary.

7. Existing appointments deemed to be made under this Ordinance - (1) The person appointed or holding office at the commencement of this Ordinance as Chief Executive Officer shall be deemed to have been appointed to that office as aforesaid under this Ordinance.

(2) All other persons who at the commencement of this Ordinance are inspectors, teachers, officers, or other employees of the department, and have been so appointed under the Samoa Amendment Act 1949 (NZ), shall be deemed to have been so appointed under this Ordinance.

8. Inspectors, etc., to act under the direction of the Chief Executive Officer - All inspectors, teachers, officers, and other employees of the department shall act under the direction of the Chief Executive Officer in the exercise and performance of the powers, duties, and functions conferred or imposed upon them by this Ordinance or by any other Ordinance under which duties are imposed on them.

9. Board of Education - (1) There is hereby constituted a Board of Education (hereinafter referred to as the Board).

(2) The functions of the Board shall be:

(a) To consider, advise, and make recommendations to the Minister in relation to any matter of general policy which the Minister may from time to time refer to it; and

(b) Generally to assist and advise the Minister in the performance of the Ministers functions under this Ordinance.

(3) The members of the Board shall be:

(a) The Minister;

(b) The Chief Executive Officer;

(c) The Principal of the Teachers' Training College;

(d) The Senior Trades and Technical Officer of the Department;

(e) One representative of the Congregational Christian Church in Samoa;

(f) One representative of the Roman Catholic Mission of Samoa and Tokelau;

(g) One representative of the Methodist Church of Samoa; and

(h) Two representatives of the general public, being one ordinarily residing on the island of Upolu and one ordinarily residing on the island of Savaii.

(4) Each representative under paragraphs (e), (f) or (g) of subsection (3) shall be chosen, and notified in writing to the Minister, by the respective Church or Mission he or she is to represent by such means as that Church or Mission thinks fit, and shall become a member of the Board as soon as the Minister has notified his or her approval in writing to the respective Church or Mission, and shall remain a member of the Board until his or her appointment is revoked by that Church or Mission.

(5) The 2 representatives under paragraph (h) of subsection (3) shall be chosen by the Minister and be appointed by the Minister for a term of 2 years, but may be reappointed. Either of such 2 representatives may at any time be removed from membership of the Board by the Minister for disability, inefficiency, neglect of duty, misconduct, insolvency or permanent departure from Samoa proved to the satisfaction of the Minister, or may at any time resign his or her membership by a written notice addressed to the Minister. When either of such 2 representatives is removed from membership or resigns or dies or his or her term of appointment expires, the Minister shall appoint a qualified person to fill the vacancy for such term as the Minister thinks fit not exceeding 2 years.

(6) The Minister at his or her discretion may invite any Church or Mission which is not named in subsection (3) but which controls a school in Samoa to send a representative to any meeting of the Board:

PROVIDED THAT such a representative may speak but may not vote at any such meeting.

(7) The Minister shall be the chairman of the Board, and the Chief Executive Officer shall be the deputy chairman of the Board. In the absence of the chairman from any meeting of the Board, the deputy chairman shall preside.

(8) No meeting of the Board shall be held unless a majority of the members (including either the chairman or the deputy chairman) are present.

(9) The chairman of each meeting of the Board shall have a deliberative vote, and if necessary a casting vote.

(10) The Board shall meet at such times and places as the Minister shall determine.

(11) Except as hereinbefore prescribed, the procedure of the Board shall be determined by the Minister.

(12) The secretary of the Board shall be such officer of the department as shall be nominated by the Chief Executive Officer and approved by the Minister.

(13) There may from time to time be paid out of money appropriated by Parliament for the purpose to each member of the Board who is not a full-time salaried employee of the Government:

(a) Any travelling expenses reasonably incurred by him or her in respect of the performance of his or her duties as a member of the Board; and

(b) Such sum as Cabinet from time to time approves (with power to give retrospective operation thereto) by way of fees or allowances in respect of each day or part of a day which such member spends upon the business of the Board.

10. Delegation of powers by Minister - (1) The Minister may from time to time, by writing under the Ministers hand, either generally or particularly, delegate to the Chief Executive Officer all or any of the powers which are conferred on the Minister as Minister of Education by his or her enactment, or by any other enactment, including powers delegated to him or her under any enactment:

PROVIDED THAT this power of delegation shall not include power to delegate to the Chief Executive Officer the Minister's power to delegate under this section or to consent to a delegation under section 11 of this Ordinance.

(2) Subject to any general or special direction given or conditions attached by the Minister, the Chief Executive Officer may exercise any power delegated to him or her as aforesaid in the same manner and with the same effect as if they had been conferred on him or her directly by this section and not by delegation.

(3) Where the Chief Executive Officer purports to act pursuant to any delegation under this section, he or she shall be presumed to be acting in accordance with the terms of the delegation

in the absence of proof to the contrary.

(4) Every such delegation shall be revocable at will, and no such delegation shall prevent the exercise of any power by the Minister.

(5) Unless and until such delegation is revoked, it shall continue in force according to its tenor. In the event of the Minister by whom any such delegation has been made ceasing to hold office, it shall continue to have effect as if made by the person for the time being holding office as Minister and, in the event of the Chief Executive Officer to whom such delegation has been made ceasing to hold office, it shall continue to have effect as if made to the person for the time being holding office as Chief Executive Officer or, if there is no Chief Executive Officer in office or if the Chief Executive Officer is absent from duty, to the person for the time being lawfully directed to act in the place of the Chief Executive.

11. Delegation of powers by Chief executive Officer - (1) The Chief Executive Officer may from time to time, by writing under his or her hand, either generally or particularly, delegate to such inspector or inspectors, teacher or teachers, officer or officers, or employee or employees of the department as he or she thinks fit all or any of the powers exercisable by him or her under any enactment including any power delegated to him or her under any enactment but not including this present power of delegation:

PROVIDED THAT the Chief Executive Officer shall not delegate any power delegated to him or her by the Minister without the written consent of the Minister, or any power delegated to him or her by the Public Service Commission of Samoa without the written consent of such Commission.

(2) Subject to any general or special direction given or condition attached by the Chief Executive Officer, the inspector, teacher, officer, or employee to whom any powers are delegated under this section may exercise those powers in the same manner and with the same effect as if they had been conferred on him or her directly by this section and not by delegation.

(3) Every person purporting to act pursuant to any delegation under this section shall be presumed to be acting in accordance with the terms of the delegation in the absence of proof to the contrary.

(4) Any delegation under this section may be made to a specified inspector, teacher, officer, or employee or to inspectors, teachers, officers, or employees of a specified class, or may be made to the holder or holders for the time being of a specified office or class of offices.

(5) Every such delegation under this section shall be revocable at will and no such delegation shall prevent the exercise of any power by the Chief Executive Officer.

(6) Any such delegation shall, until revoked, continue in force according to its tenor, notwithstanding that the Chief Executive Officer by whom it was made may have ceased to hold office and shall continue to have effect as if made by the successor in office of that Chief Executive Officer.

12. Fees and levies - (1) Fees or levies at a prescribed scale may be charged or made for the maintenance of a Government school, and for tuition, board, and the provision of sporting or other equipment for any such school, or for any of those purposes.

(2) All fees and levies made or charged prior to the commencement of this Ordinance shall be deemed to have been lawfully made or charged.

PART III COMPULSORY PRIMARY EDUCATION

13. Register of non-Government schools - The Chief Executive Officer shall keep and maintain a register of all schools which are registered pursuant to section 14 of this Ordinance, and every school described in that register shall be a registered school for the purposes of this Ordinance.

14. Registration of non-Government schools - (1) The controlling Authorities of any primary school or intended primary school which is not a Government school may apply to the Minister for registration under this Ordinance, and the Minister if he or she is satisfied that:

(a) The school curriculum will provide suitable tuition in such subjects as are required to be provided in a Government school; and

(b) The standard of general education and discipline to be provided by that school will be sufficiently high; and

(c) it is not contrary to the public interest so to do,

shall grant such application and the school shall be registered accordingly.

(2) The primary schools described in the First and Second parts of the Schedule to this Ordinance shall be deemed from the date of the commencement of the Education Amendment Act 1992/1993 to be registered under this Section.

(3) Where the Minister believes on reasonable grounds that any registered school does not satisfy or has ceased to satisfy the criteria set out in subsection (1) of this section, the Minister may, after giving the controlling authorities of that school a reasonable opportunity to be heard by him, instruct the Chief executive Officer to remove that school from the register kept pursuant to Section 13 of this Act and the Chief Executive Officer shall act accordingly.

15. Primary schools to keep and maintain roll - (1) There shall be kept and maintained at every Government primary school and at every registered school, a roll, upon which shall be inscribed the names and addresses of all of the children from time to time enrolled at that school.

(2) The responsibility for keeping and maintaining the roll of a school shall rest with the Head Teacher of that school.

16. Primary school children to be enrolled - (1) Subject to the provisions of this Ordinance, every child is hereby required to have his name enrolled on the register of some Government or registered school from the time when he attains the age of 5 years until either he attains the age of 14 years or sooner completes the work of year 8.

(2) Notwithstanding anything in subsection (1) of this section, no child shall be required to be enrolled on the register of a school in accordance with that subsection during any period before the child attains the age of 7 years when the total distance that the child would be required to walk from his or her place of residence to the school, or from his or her place of residence or to a public conveyance or from a public conveyance to the school, is more than 2 miles, the distance being estimated by the nearest road.

(3) It shall be the duty of every Pulenuu at all times:

(i) to satisfy himself or herself that every child residing in every village in respect of which he or she has authority who is required by subsection (1) of this section to be enrolled, is so enrolled; and

(ii) if he or she is not so satisfied, promptly to inform the Chief Executive Officer and keep the Chief Executive Officer informed of such particulars of every child who is required to be enrolled and who is not so enrolled as the Chief Executive Officer may require.

(4) It shall be the duty of the Chief Executive Officer to take all necessary steps to ensure that all children who are required to be enrolled at a Government or registered school in accordance with subsection (1) are so enrolled unless they are exempted in accordance with this Ordinance.

17. Certificate of exemption from enrolment - (1) The parent or guardian of any child who has not completed his primary education may apply for and receive from the Head Teacher of the Government primary school nearest to the place of residence of that child, a certificate of exemption under this section.

(2) Every such certificate of exemption shall exempt the child from the obligation to have his or her name enrolled on the register of a school.

(3) No certificate of exemption shall be granted under this section, except upon the ground:

(a) That the child is elsewhere under instruction as regular and as efficient as in a Government or registered school; or

(b) That the child is unable to attend school regularly or is unable to be educated by reason of physical or mental handicap.

(4) Any parent who is dissatisfied with any refusal to grant a certificate of exemption under the foregoing provisions of this section may appeal to the Chief Executive Officer against such refusal and the decision of the Chief Executive Officer shall be final.

(5) The Chief Executive Officer may confirm or overrule the refusal, and his or her decision shall be final.

(6) Every certificate of exemption given under this section shall, unless and until it is revoked, exempt the parent and any other person or persons from the obligation to have the child enrolled as a pupil of any school.

(7) Every certificate of exemption given under this section shall state the ground of exemption; and a copy of every such certificate shall be forwarded by the Head Teacher to the Chief Executive Officer within 14 days after its issue.

(8) The Chief Executive Officer may at any time, on the advice of an Inspector of Primary Schools, cancel any certificate of exemption from enrolment granted under this section if it considers that the ground on which the certificate of exemption was granted no longer exists or has become in the particular case no longer such as to warrant the continuance of the exemption.

(9) Where any certificate of exemption from enrolment is granted on the ground specified in paragraph (b) of subsection (3) of this section, the Chief Executive Officer may, if he or she considers that the child would benefit from special education, revoke the certificate of exemption and, by notice in writing, call upon the parent of the child to have the name of the child enrolled on the register of any special school, or special class established under this Ordinance, or of any recognised occupational group providing special facilities for the education of such children.

18. Ascertainment of suitability of education of certain children - The Chief Executive Officer may provide such means as he or she thinks fit to satisfy himself or herself that every child of school age who is suffering from disability of body or mind of such magnitude as to require special education, and is receiving tuition privately, is receiving efficient and suitable education.

19. Compulsory enrolment in special school, etc., of certain children - (1) Subject to the provisions of this Ordinance, the parent of any child of school age who after such special or medical examination as the Chief Executive Officer may obtain, is deemed by the Chief Executive Officer to require special education, may be required by the Chief Executive Officer to enroll the child in any special school or special class, or in any recognised occupational group providing special facilities for the education of such children.

(2) If the parent of any such child fails to enroll that child in a special school, special class, or recognised occupational group as aforesaid, if and when required by the Chief Executive Officer so to do, he or she commits an offence and is liable on conviction to the penalty prescribed by section 21 as for failure under that section to enroll the child on the register of a school:

PROVIDED HOWEVER THAT it shall be a defence to any prosecution under this section that the parent charged would have suffered substantial financial hardship if he or she had complied with the requirement of the Chief Executive Officer and that he or she would have been unable to alleviate that hardship. The onus of proof of any such defence shall rest with the defendant.

20. Chief Executive Officer may in certain circumstances direct that a child be sent to special school, etc., - (1) It shall be the duty of the parent of every child who has attained the age of 7 years and is of school age and is suffering from disability of body or mind of such magnitude as to require special education to take steps to provide efficient and suitable education for the child.

(2) In any case where the parent of the child fails to provide that education for the child, or is deemed by the Chief Executive Officer to be unable to provide that education, the Chief Executive Officer may direct that the child be sent to such special school or other institution providing special education as the Chief Executive Officer thinks fit.

(3) Where any such direction is given by the Chief Executive Officer in respect of any child, the parent of the child may, within 28 days after the date on which a parent of the child has been informed of the direction, appeal to a District Court Judge against the direction, and the District Court Judge may suspend or vary or rescind or confirm the direction.

(4) Where a direction is so given in respect of any child, the parent to whom subsection (2) applies shall contribute to the cost of the maintenance of the child as may be agreed upon between that parent and the Chief Executive Officer:

PROVIDED THAT, if the agreement so made provides for payment at a rate that will not meet the full cost of the maintenance and education of the child at the special school or institution, a further agreement or agreements may be made between the Chief Executive Officer and any person who is a parent within the meaning of this Ordinance to meet the balance unpaid for the maintenance and education of the child at the school or institution.

(5) If no such agreement is made, and the direction of the Chief Executive Officer that the child be sent to the special school or institution is not complied with by the parent of the child, or where any payment agreed to be made is in arrears for one month, then a District Court Judge may, on application in that behalf, make an order for the admission of the child to such special school or institution as the District Court Judge deems fit, and may make a further order or orders directing any parent to contribute towards the maintenance and education of the child at that special school or institution to which the child may thereafter be sent by direction of the Chief Executive Officer, and any such Order may be enforced by the Chief Executive Officer as if it were a judgment in respect of a civil debt due to the Chief Executive Officer.

(6) Without limiting the power of the Court to enforce an Order made under subsection (5), proceedings for enforcement of any Order made under that subsection may be taken as if every default under that Order were a failure by the defendant to pay an instalment of a judgment debt.

(7) Any child who has been admitted to a special school or institution may, by direction of the Chief Executive Officer, be transferred to any other school or institution.

(8) If the person by whom money is payable under any agreement does not pay it at the times stated in the agreement, the money may be recovered as a debt in any Court of competent

jurisdiction by the persons entitled thereto.

(9) Amounts payable by any parent under any agreement or Order entered into or made pursuant to the provisions of this section shall be paid to the Chief Executive Officer who shall be responsible for payment to the special school or institution to which the child is directed or ordered to be sent of all proper charges made by that school or institution for the maintenance and education of the child.

21. Penalty for failure to enrol child - (1) Where a child who is required to be enrolled on the register of some Government school, or other registered school is not so enrolled, the parent of the child commits an offence and is liable on summary conviction to a fine not exceeding 1 penalty unit.

(2) The payment of any such fine shall not be a bar to further proceedings in case of further default.

22. Primary schools to keep attendance register - (1) There shall be kept at every Government primary school and at every registered school an attendance register in which there shall be recorded daily the fact of the attendance or absence of every pupil enrolled at that school on that day.

(2) The attendance register shall be marked daily at a time fixed by the Head Teacher of that school (being a time not later than one hour after the commencement of the school day) and every pupil not present at that time shall be marked as absent:

PROVIDED however that where a pupil reports at the school after the register for that day has been marked, the Head Teacher, if he or she is satisfied that the lateness of the child was occasioned by the child's sickness or by unforeseen or exceptional circumstances, may amend the register for that day to record the presence of that child and shall note in the register the reasons for such amendment, and that child shall for the purposes of section 23 be deemed to have been present at the time of the marking of the register.

(3) The responsibility for keeping the attendance register of a school shall rest with the Head Teacher of that school.

(4) Where in any school any of the provisions of this section are not complied with the Head Teacher of that school, commits an offence and is liable upon conviction to a fine not exceeding 1 penalty unit.

(5) For the purposes of this section "daily", in relation to a school means every day that the school is open.

23. Every child required to be enrolled must attend school - (1) Subject to the provisions of this Ordinance, every child required to be enrolled in accordance with section 16 on the register of some school, is required to attend the school whenever it is open; and at all times when the school is open the attendance register of the school shall be available for inspection by the

Attendance Officer or other person appointed by the Chief Executive Officer for the purpose of ensuring the attendance of children at school.

(2) A child shall be deemed to be attending any such school, and an attendance may be counted to him or her, if he or she is present or is deemed to have been present at the time fixed for marking the register and remains present until the closing of the school, unless he or she is compelled to leave earlier in order to return home by public conveyance.

(3) A child who has attended for 4 hours in any school day may, under special circumstances, be allowed by the Head Teacher to leave before the close of the school.

24. Certificate of exemption from attendance - (1) The parent of any child may apply for and receive a certificate of exemption from attendance from the person entitled under section 17 to grant a certificate of exemption from enrolment.

(2) Every such certificate of exemption from attendance shall exempt the child to whom it relates from attendance in whole or part at school.

(3) No certificate of exemption from attendance shall be granted under this section, except upon the ground:

(a) That the total distance that the child would be required to walk from his or her place of residence to the school, or from his or her place of residence to a public conveyance and from the public conveyance to the school, is more than 2 miles in the case of a child under 10 years of age, or more than 3 miles in any other case, the distance being estimated by the nearest road; or

(b) That the child is unable to attend school by reason of sickness, danger of infection, infirmity, severe stress of weather, sudden and serious illness of a parent, or other sufficient cause; or

(c) That the road by which the child has to travel to school is not sufficiently passable.

(4) Any parent who is dissatisfied with any refusal to grant a certificate of exemption from attendance may appeal to the Chief Executive Officer who may confirm or overrule the refusal; and the Chief Executive Officers decision shall be final.

(5) Every certificate of exemption from attendance shall state the grounds of the exemption and shall be for such period only as the circumstances may require; and no such certificate of exemption shall be granted on the grounds specified in paragraph (a) of subsection (3) for a longer period than one year nor on any other grounds specified in that subsection for a longer period than 7 school days, but any such certificate may be from time to time renewed for a like period during the continuance of the conditions for which the exemption has been granted:

PROVIDED THAT the Chief Executive Officer may at any time, on the advice of an Inspector, cancel any such certificate of exemption.

(6) Where any certificate of exemption from attendance is granted on the grounds specified in paragraph (a) of subsection (3), the person granting the same shall forthwith report the name, address, and age of the child to the Chief Executive Officer.

(7) A child may be exempted from attendance for a period not exceeding 5 school days notwithstanding that no certificate exempting him or her from attendance has been granted under this section, if the Head Teacher of the school attended by him or her is satisfied that the child has been absent for good and sufficient reason. A certificate signed by the Head Teacher of the school attended by a child certifying that he or she has not been so satisfied shall be sufficient proof of that fact in the absence of evidence to the contrary. In connection with any such certificate, notice shall be taken judicially without further proof of the appointment and signature of every such Head Teacher.

25. Penalty for irregular attendance at school - (1) Where any child required by this Ordinance to attend school has been enrolled on the register of a school as required by this Ordinance and does not attend as provided in section 22, the parent of the child commits an offence and is liable on conviction to a fine not exceeding 1 penalty unit for every day on which the child fails to attend school as required by this Ordinance; but no parent shall be liable to a fine exceeding 1 penalty unit on conviction for a first offence against this section, nor to a fine exceeding 1 penalty unit on conviction for a second or subsequent offence against this section.

(2) It shall be a defence to any prosecution under this section that the parent charged was, by reason of substantial financial hardship which he or she was unable to alleviate, unable to ensure that his or her child attended school during any of the period of the failure which is the subject of the prosecution. The onus of proof of any such defence shall rest with the defendant.

26. Employment of children of school age - No person shall, after the commencement of this Ordinance, employ or continue to employ any child of school age at any time within school hours at any other time if the employment of the child would prevent or interfere with his or her attendance at school, unless there is produced to that person a certificate of exemption or other satisfactory evidence that the child is exempted (otherwise than on the ground that he or she is under suitable instruction elsewhere than at school) from the obligation to be enrolled as a pupil at any school.

27. Parents not to permit employment of children of school age - The parent of any child of school age who permits that child to be employed contrary to the provisions of section 26, and any person who so employs any such child commits an offence and is liable on conviction to a fine not exceeding 1 penalty unit.

28. Appointment of Attendance Officers - (1) The Chief Executive Officer may appoint primary school inspectors or other officers of the Education Department to be Attendance Officers for the purposes of this section.

(2) It shall be the duty of the Chief Executive Officer, by the appointment of Attendance Officers or by such other means as he or she deems sufficient, to take steps to ensure that all children

enrolled as pupils of any government primary school or registered school are regular in their attendance at school.

(3) Any Attendance Officer appointed under this section, on production of a distinctive badge or other evidence of his or her appointment, may at any time during school hours detain any child who appears to the Attendance Officer to be of school age and is not then present at school, and may question him or her as to his or her age, name, and address, the school at which he or she is enrolled, and the reason of his or her absence from school. If in any such case the child fails to give a satisfactory reason for his or her absence from school, the Attendance Officer may take the child to the place of residence of that child or to the school at which the Attendance Officer believes that he or she is or should be enrolled, and shall report the matter to the Chief Executive Officer.

(4) Any person who, after production by the Attendance Officer of evidence of his appointment, obstructs or interferes with him or her in the exercise of his or her powers under this Ordinance commits an offence and is liable upon conviction to a fine not exceeding 1 penalty unit.

(5) Any Attendance Officer appointed under this section, or the Chief Executive Officer, may lay informations, conduct prosecutions, and take all other proceedings under this Part of this Ordinance.

(6) A certificate under the hand of the Chief Executive Officer showing that the person named in the certificate has been duly appointed for any of the purposes mentioned in this section shall be sufficient evidence of his or her appointment, and the signature to any such certificate shall not in any proceedings be inquired into or disputed.

29. Hearing of proceedings - Any proceedings under this Part of this Ordinance shall, if the Court so orders, be heard with closed doors.

30. Evidence of school roll, etc., - (1) For the purpose of any proceedings under this Part of this Ordinance, a certificate by the Head Teacher as to the enrolment of any child, the number of times the school was open during any period, the number of attendances made by any child during that period, the age of any pupil, and the name and address of any parent of a pupil shall, in the absence of proof to the contrary, be sufficient evidence of the matter stated in the certificate.

(2) Notice shall be taken judicially without further proof of the signature of the Head Teacher on any such certificate and of his or her appointment.

31. Onus of proof on parents - In any proceedings under this Part of this Ordinance, the onus shall be on the parent of any child of showing that the child has enrolled at or is enrolled at, or (as the case may be) has attended or is attending a school in accordance with the requirements of this Ordinance, or that the child is exempted from enrolment or attendance at a school.

32. Suspension of children in certain cases - (1) It shall be lawful for the Head Teacher of any Government primary school or registered school, to suspend from attendance any child who,

from gross misconduct or incorrigible disobedience, may be considered an injurious or dangerous example to other pupils, or whose attendance at school is likely for any serious cause to have a detrimental effect upon himself or herself or upon the other pupils:

PROVIDED THAT no such suspension from a Government school of a pupil under 14 years of age shall be for a period exceeding one week, except where extended as hereafter provided in this section.

(2) Where any pupil under the age of 14 years is suspended from attendance under subsection (1), the following provisions shall apply:

(a) The Head Teacher shall immediately notify the parents of the pupil and the Chief Executive Officer of the suspension and the reasons therefor, and shall forward forthwith to the Chief Executive Officer a full report of the suspension;

(b) The Chief Executive Officer on receiving the report may, after such inquiry as he or she considers necessary, where the pupil is enrolled in a Government school either reinstate the pupil conditionally or unconditionally, or extend the term of the suspension for such period as the Chief Executive Officer deems fit;

(c) The Chief Executive Officer may depute any one or more of the officers of the Department to receive reports of suspensions on his or her behalf; and any officer or officers so deputed may reinstate a pupil or extend the term of a suspension as if the officer or officers were the Chief Executive Officer himself or herself, but any action so taken shall be subject to confirmation by the Chief Executive Officer;

(d) In any case where the Chief Executive Officer (or any person deputed to act on his or her behalf) extends the term of suspension of a pupil for any reason, other than to allow time to complete inquiries in the matter, he or she shall immediately advise the appropriate Inspector of the suspension and the reasons for its extension.

(e) In any case the provisions of clause (d) apply and in any case where a pupil is suspended from a registered school for a period greater than one week an Inspector shall first endeavour to have the suspended pupil re-established in some suitable school, which school may be the school from which the pupil was suspended, or it may be some other school providing education of the same kind which the pupil can conveniently attend.

(f) The Inspector, in any case where he or she is unable to make suitable arrangements in accordance with paragraph (e) for the education of a suspended pupil, shall notify the Chief Executive Officer to that effect, and the Chief Executive Officer may then report the matter to the Pulenu'u of the village in which the child resides and request that the matter be referred to the Village Fono for its attention, and for the purposes of the Village Fono Act 1990 the behaviour of the child which brought about his suspension may be treated as if it were village misconduct and that child and his or her parents were the persons misconducting themselves.

(g) The name of every suspended pupil shall remain on the register of the school from which he or she is suspended until he or she has been placed at some other school, or has been granted by the Chief Executive Officer exemption from the obligation to be enrolled as a pupil of any school, and the suspended pupil shall not be entitled to attend the school from which he or she is suspended while the suspension continues.

PART IV GENERAL

33. Offences - (1) Any person who:

(a) Wilfully makes any false entry in any register, record, or other document required to be made, kept, or submitted to any authority under this Ordinance or any regulations under this Ordinance.

(b) Wilfully disturbs any school, or who insults or abuses any teacher in the presence or hearing of the children assembled in the school or in the school grounds,-

shall be guilty of an offence.

(2) Every person who is guilty of an offence against this Ordinance or any regulation made thereunder shall, except where some other penalty is provided, be liable to a fine not exceeding 1 penalty unit or to imprisonment for any term not exceeding 3 months, or to both such fine and imprisonment.

(3) Where proceedings are brought in respect of any offence under this Ordinance such proceedings may be brought by the Chief Executive Officer or by any person appointed by the Chief Executive Officer to conduct the proceedings in any Court on his or his behalf.

34. Legal proceedings - (1) All money payable under this Ordinance may be recovered as a debt due to the Government.

(2) All proceedings for the recovery of money under this Ordinance or in respect of this Ordinance may be brought in the name of the Chief Executive Officer and may be conducted by him or her or by any officer authorised by him or her in that behalf.

35. Annual report - (1) The Chief Executive Officer shall as soon as practicable after the end of each financial year furnish to the Minister a report on the operations of the department for that year.

(2) A copy of the report shall be laid before the Legislative Assembly within 28 days after it has been furnished to the Minister if the Assembly is then in session, and, if not, shall be laid before the Assembly within 28 days after the commencement of the next ensuing session.

36. Regulations - (1) The Head of State, acting on the advice of Cabinet, may from time to time make regulations for any purpose for which regulations are contemplated by this Ordinance and

for the due administration thereof.

(2) In particular and without prejudice to the generality of the foregoing power such regulations may provide for the following matters:

(a) The fees or levies to be charged for the maintenance of a Government school and for tuition, board, or the provision of sporting equipment at any such school;

(aa) The registration of schools, including the prescription of standards for registration and operation, and permitting the Minister to refuse to register or consent to the opening of a school, or to cancel the registration of a school and close it, if in his or her opinion it fails at any time to comply with any such standard;

(b) The classification and grading of schools;

(c) The training and examination of teachers;

(d) Any other matter or thing which by this Ordinance may be prescribed or which is incidental or ancillary to any of the foregoing.

(3) Regulations made under this Ordinance may be made to apply generally throughout Samoa or to any specified part or parts thereof, or to any specified schools or classes of schools.

(4) It shall be the responsibility of the Minister to lay all regulations made under this section before the Legislative Assembly within 28 days after the making thereof if the Assembly is then in session and, if not, to lay them before the Assembly within 28 days after the commencement of the next ensuing session.

SCHEDULE

FIRST PART

PRIVATE PRIMARY SCHOOLS

Robert Louis Stevenson
Vaiala Beach School

MISSION PRIMARY SCHOOLS

Latter Day Saints:

- Pesega Primary School
- Sauniatu Primary School
- Vailuutai Primary School
- Fusi Primary School
- Faala Primary School

Seventh Day Adventist:

- Lalovaea Primary School
- Siufaga Primary School

Methodist:

- Sione Uesile Primary School

Catholic:

- St. Theresa's Primary School (Fusi)
- Sacred Heart Primary School (Safotu)
- St. Joseph's Primary School (Leauvaa)
- St. Francis Primary School (Vaiusu)
- St. Theresa's Primary School (Lepea)
- St. Joan of Arc's Primary School (Leulumoega)
- St. Mary's Primary School (Savalalo)
- St. Peter's Primary School (Falefa)
- Marist Brother's Primary School (Mulivai)

SECOND PART

Those classes of the following school which are deemed by Subsection (2) of section 2 of this Ordinance to be primary schools:

- Ulimasao College (Palauli)

REVISION NOTES 1997

The Education Ordinance 1959, No.14 appearing in this reprint comprises that Ordinance as it appears in the 1977 reprint amended as indicated below:

Section 6(1) :	Amended by Public Service (Special Posts) Act 1989 No.14 section 11 (2) Note! The last three sections in this Act would appear to be inaccurately numbered. The division of the principal Act into parts I to IV in accordance with Education Amendment Act 1992/1993 section 2 No.14.
Section 2:	Amended by section 3, 1992/1993 No.14 by adding a further nine definitions and adding subsections (2) and (3).
Sections 13-32:	Added by 1992/1993 No.14 section 4.

Sections 33- 36:	Renumbered from sections 13 to 16 by 1992/1993 No.14 section 2 (d).
Schedule:	Added by 1992/1993 No.14 section 5 (see section 14) of this reprint.

REVISION NOTE 2008

This law has been generally edited as provided for by section 5 of the *Revision and Publication of Laws Act 2008*. The following general revisions have been made –

- (a) References to Western Samoa have been amended to Samoa in accordance with an amendment to the Constitution of Samoa in 1997.
- (b) The fines have been amended and are stated as penalty units as provided for by the Fines (Review and Amendment) Act 1998.
- (c) All references to the male gender have been made gender neutral.
- (d) Amendments have been made to conform to modern drafting styles and to use modern language as applied in the laws of Samoa.
- (e) Amendments have been made to up-date references to offices, officers and statutes.
- (f) Other minor editing has been done in accordance with the lawful powers of the Attorney General.

There were no amendments made to this law since the publication of the *Western Samoa Statutes Reprint 1978-1996*.

The "Minister of Education" has been changed to "Minister responsible for Education" in order to be consistent with the *Ministerial and Departmental Act 2003*.

Revised and consolidated by Leilani Pereira-Moeono
Under the supervision of Teleiai Lalotoa Sinaalamaimaleula Mulitalo
(Parliamentary Counsel)

REVISION NOTES 2008 No. 2

This law has been generally edited as provided for by section 5 of the Revision and Publication of Laws Act 2008. The commencement date is inserted after the assent date. Section 4 (general powers of the Attorney General) of the Revision and Publication of Laws Act 2008 is used to insert the commencement date.

Revised and consolidated by the Legislative Drafting Division under the supervision of Teleiai Lalotoa Sinaalamaimaleula Mulitalo (Parliamentary Counsel)

The Education Ordinance 1959
is administered in the Ministry of Education, Sports and Culture.